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JHARKHAND/ HEMANT SOREN

NO ESCAPING ED'S SHADOW

By Amitabh Srivastava

Jharkhand chief minister Hemant Soren's troubles seem far from over. The Supreme Court on September 18 dismissed his plea to stay the summons issued by the Enforcement Directorate in an alleged money-laundering case, and instead asked him to approach the high court first. His hopes dashed, the CM may now have to appear before the agency on September 23—unless he takes the high court route and gets a ruling in his favour.

This is the fourth summon issued to Soren in less than two months after he failed to appear for questioning twice in August and once this month. The ED, which has been probing several money-laundering cases and allegedly illegal land deals in Jharkhand, wants Soren to record his statement regarding the properties he owns, possesses and occupies. On August 18, the ED had said in a letter to him that the issue was "not about disclosure of personal assets but about the investigation of the assets representing proceeds of crime". That statement was seen by many as hinting towards an apparent discrepancy in Soren's declared assets.

The Jharkhand Mukti Morcha (JMM) leader, on his part, has maintained that he had provided details of movable and immovable properties owned by him and his family members, along with certified copies of title deeds and his bank accounts, during the last round of questioning in November 2022. That particular episode, in which Soren was questioned for nine hours in connection with an alleged mining scam, had proven to be especially rough, coming as it did just months after the arrest of his aide Pankaj Mishra in the case. Mishra is still in judicial custody. The ED, though, has clarified that the November 2022 summons and the ones issued recently are for two different cases being probed under the Prevention of Money Laundering Act (PMLA), 2002.

SOREN HAS MAINTAINTED THAT HE HAD PROVIDED HIS ASSET DETAILS TO THE ED IN NOVEMBER LAST YEAR, AND THAT HE IS BEING TARGETED FOR POLITICAL REASONS

Soren has slammed the ED action vehemently. In his now-withdrawn petition to the SC, he said he is being targeted by the agency for political reasons as he heads a coalition government whose constituents are not aligned with the ruling party at the Centre. He also questioned the validity of sections 50 and 63 of the PMLA, which allow the ED to summon an accused and record a statement. The sections, argued Soren, violate fundamental rights as a person summoned for questioning is always under threat of being arrested by way of the powers vested in the agency under Section 19 of the Act.

Be that as it may, the ED has made several arrests in the state so far, including of two IAS officers. Pooja Singhal, a 2000 batch officer, was arrested in May last year for allegedly laundering money diverted from MNREGA funds during her 2009-10 tenure as the Khunti deputy commissioner. This year in May, Chhavi Ranjan, a 2011 batch officer, was arrested for allegedly facilitating illegal purchase and sale of land, including one owned by the Indian Army in Ranchi.

With Jharkhand set to face both Lok Sabha and assembly polls next year, the JMM has chosen to project the ED summons as a ploy to attack a young tribal leader. Whatever be the case, Soren and his JMM are unlikely to emerge entirely unscathed from this storm. ■